

9.
Bill for an account of partnership dealings.

By a person entitled to an account of the dealings and transactions of a partnership dissolved or expired, seeking such account.

IN CHANCERY.

To the Honourable, &c.

Humbly complaining, &c., your orator, &c., that from the _____ day of _____, down to the _____ day of _____ he and C. D., the defendant hereinafter named, carried on the business of _____ in co-partnership, under certain articles of co-partnership, dated the _____ day of _____, and made between (*parties*), (*or under a verbal agreement made between the said A. B. and C. D., or through their respective agents E. F. and G. H.*), on the _____ day of _____; and he says that the said co-partnership was dissolved (*or expired, as the case may be*) on the _____ day of _____. To the end therefore that an account of the partnership dealings and transactions between the said A. B. and the said C. D. may be taken, and the affairs and business of the said partnership wound up and settled under the direction of this Court, and for that purpose that all proper directions may be given, and accounts taken.

(*And for further relief; pray subpoena.*)

The above follows the English form No. 9.

Similar to
English form.

10.

To compel a
Trustee to
allow the plain-
tiff to use his
name in an
action at law.

By a person entitled to an equitable estate or interest, and claiming to use the name of his trustee in prosecuting an action for his sole benefit.

IN CHANCERY.

To the Honourable, &c.

Humbly complaining, &c., your orator, &c., that under an indenture, dated the _____ day of _____, and made between (*parties*), he is entitled to an equitable estate or interest in certain property therein described or referred to; and that C. D., the defendant hereinafter named, is a trustee for him of such property; and that being desirous to prosecute an action at law against _____ in respect of such property, he has made, or caused to be made, an application to the said defendant to allow him to bring such action in his name, and has offered to indemnify him against the costs of such action, but that the said defendant has refused or neglected to allow his name to be used for that purpose. To the end therefore that the said A. B. may be allowed to prosecute the said action in the name of the said defendant, he hereby offering to indemnify him against the costs of such action.

(*And for further relief; pray subpoena.*)

Similar to
English form.

The above follows the English form No. 10.

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